

Notifications

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Application and Definitions

1.1

Unless otherwise stated, this Part applies to every _firm_ and Chapter 8 applies only to a _BRRD undertaking_.

1.1A

1. (1) Chapter 5 of this Part shall apply to a _CRR consolidation entity_ and for this purpose references to a _firm_ in this Part mean a _CRR consolidation entity_.

2. (2) Chapter 2, rule 2.3A, shall also apply to a _CRR consolidation entity_.

1.2

In this Part, the following definitions shall apply:

BRRD management body

means a _BRRD undertaking?s_ body or bodies, which are appointed in accordance with national law, which are empowered to set the _BRRD undertaking?s_ strategy, objectives and overall direction, and which oversee and monitor management decision-making, and include the _persons_ who effectively direct the business of the _BRRD undertaking_.

conduct rules

means the rules in Conduct Rules 2 and 3.

Core Activities Order

means the Financial Services and Markets Act 2000 (Ring-fenced Bodies and Core Activities) Order 2014 (SI 2014/1960).

core deposit

has the meaning given in Article 1(3) of the _Core Activities Order_.

core deposit level condition

means the condition referred to in Articles 11(1)(d) and 12 of the _Core Activities Order_.

exposure

has the meaning in Article 1(4) of the _Excluded Activities and Prohibitions Order_.

extraordinary public financial support

means, support of a kind described in section 3(1) of the Banking Act 2009 that is provided in order to preserve or restore the viability, liquidity or solvency of a _BRRD undertaking_ or of a _group_ of which a _BRRD undertaking_ forms part.

financial institution exposure

has the meaning in Article 1(4) of the _Excluded Activities and Prohibitions Order_.

injunction

means a court order made by the _High Court_ that prohibits a _person_ from doing or continuing to do a certain act or requires a ___person_ to carry out a certain act.

insolvency order

means an administration order, compulsory winding up order, bankruptcy order or sequestration order.

mixed financial holding company

has the meaning given in point (21) of Article 4(1) of the _CRR_.

notification rule

(in relation to a _firm_) means a _rule_ requiring a _firm_ to give the _PRA_ notice of, or information regarding, an event, but excluding a _rule_ requiring periodic submission of a report.

occupational pension scheme

has the meaning given in Article 3(1) of the _Regulated Activities Order_.

overseas regulator

has the meaning given in section 195(3) of _FSMA_.

own funds

has the meaning set out at point (118) of Article 4(1) of the _CRR_.

regulated entity

means one of the following:

1. (1) a _credit institution_ ;
2. (2) an _insurance undertaking_ within the meaning of Article 13(1) of the _Solvency II Directive_ ; or
3. (3) an _investment firm_ ,

whether or not it is incorporated in, or has its head office in, the _UK_.

relevant group member

means a member of a _group_ that is a _UK bank_ and does not carry out _insurance business_ acting as principal in accordance with a _Part 4A permission_.

repurchase transaction

has the meaning given in point (83) of Article 4(1) of the _CRR_.

sole trader

means an individual who is a _firm_.

UK financial conglomerate

means a _financial conglomerate_ that has:

1. (1) a _regulated entity_ at the head of the _financial conglomerate_ ;
2. (2) a _mixed financial holding company_ which has its head office in the _UK_ ; or
3. (3) a _regulated entity_ linked with another financial sector entity by _a_ _common management relationship_.

1.3

[Deleted.]

1.4

This Part:

1. (1) applies with respect to the carrying on of both _regulated activities_ and _unregulated activities_ ; and
2. (2) takes into account any activity of other members of a _group_ of which the _firm_ is a member.

2

General Notification Requirements

2.1

A _firm_ must notify the _PRA_ immediately if it becomes aware, or has information which reasonably suggests, that any of the following has occurred, may have occurred or may occur in the foreseeable future:

1. (1) the _firm_ failing to satisfy one or more of the _threshold conditions_ ; or
2. (2) any matter which could have a significant adverse impact on the _firm?s_ reputation; or
3. (3) any matter which could affect the _firm?s_ ability to continue to provide adequate services to its customers and which could result in serious detriment to a customer of the _firm_ ; or
4. (4) any matter in respect of the _firm_ which could result in serious financial consequences to the _UK financial system_ or to other _firms_.

2.2

In determining whether the _PRA_ should be notified of any of the events in 2.1 that may occur in the foreseeable future, a _firm_ must consider both the probability of the event happening and the severity of the outcome should it happen.

2.3

A _firm_ must give the _PRA_ notice of:

1. (1) any proposed restructuring, reorganisation or business expansion which could have a significant impact on the _firm?s_ risk profile or resources, including, but not limited to:
 1. (a) setting up a new _undertaking_ within a _firm?s_ _group_ , or a new _branch_ (whether in the _UK_ or not);

2. (b) [deleted.]
3. (c) commencing the provision of a new type of product or service (whether in the _UK_ or not);
4. (d) ceasing to undertake a _regulated activity_ or _ancillary activity_ , or significantly reducing the scope of such activities;
5. (e) entering into, or significantly changing, a _material outsourcing_ arrangement;
6. (f) a substantial change or a series of changes in the _governing body_ of an _overseas firm_ ; or
7. (g) any proposed change which limits the liability of any of the members or partners of a _firm_ such as a general partner becoming a limited partner or re-registration as a limited liability company of a company incorporated with unlimited liability;
8. (h) [deleted.]
2. (2) any significant failure in the _firm?s_ systems or controls, including those reported to the _firm_ by the _firm?s_ auditor;
3. (3) any action which a ___firm_ proposes to take which would result in a material change in its capital adequacy or solvency, including, but not limited to:
 1. (a) any action which would result in a material change in the _firm?s_ financial resources or financial resources requirement;
 2. (b) a material change resulting from the payment of a special or unusual dividend or the repayment of share capital or a subordinated loan;
 3. (c) [deleted]
 4. (d) significant trading or non-trading losses (whether recognised or unrecognised).

2.3A

A _CRR consolidation entity_ must give the _PRA_ notice of any action which a _CRR consolidation entity_ or other group member proposes to take which would result in a material change in the group's capital adequacy or solvency, including, but not limited to:

1. (a) any action which would result in a material change in the group's financial resources or financial resources requirement;
2. (b) a material change resulting from the payment of a special or unusual dividend or the repayment of share capital or a subordinated loan; or
3. (c) significant trading or non-trading losses of the group (whether recognised or unrecognised).

2.4

1. (1) A _firm_ must notify the _PRA_ of:
 1. (a) a significant breach of a _rule_ ;
 2. (b) a breach of any requirement imposed by _FSMA_ or by regulations or an order made under _FSMA_ by _the Treasury_ (except if the breach is an offence, in which case (c) applies);
 3. (c) the bringing of a prosecution for, or a conviction of, any offence under _FSMA_ ;
 4. (d) [deleted];
 5. (e) a breach of a directly applicable provision in the _CRR_ or any directly applicable regulations made under the _CRD_ or the _CRR_ ;
 6. (f) a breach of any requirement in regulation 6 of the Financial Services and Markets Act 2000 (Markets in Financial Instruments) Regulations 2017; or
 7. (g) it exceeding (or becoming aware that it will exceed) the limit in Article 395 of the _CRR_ ,
2. by (or as regards (c), against) the _firm_ or any of its _directors_ , _officers_ , _employees_ , _approved persons_ , or _appointed representatives_ or, where applicable, _tied agents_.

3. (2) A firm must make the notification in (1) immediately it becomes aware, or has information which reasonably suggests, that any of the matters in (1) has occurred, may have occurred or may occur in the foreseeable future.

2.5

A notification under 2.4 must include:

1. (1) information about any circumstances relevant to the breach or offence;
2. (2) identification of the rule or requirement or offence; and
3. (3) information about any steps which a firm or other person has taken or intends to take to rectify or remedy the breach or prevent any future potential occurrence.

2.6

A firm must notify the PRA immediately if:

1. (1) civil proceedings are brought against the firm and the amount of the claim is significant in relation to the firm's financial resources or its reputation; or
2. (2) any action is brought against the firm under section 71 (Actions for damages) or section 138D (Actions for damages) of FSMA ; or
3. (3) disciplinary measures or sanctions have been imposed on the firm by any statutory or regulatory authority, professional organisation or trade body (other than the PRA) or the firm becomes aware that one of those bodies has started an investigation into its affairs; or
4. (4) the firm is prosecuted for, or convicted of, any offence involving fraud or dishonesty, or any penalties are imposed on it for tax evasion; or
5. (5) it is removed as trustee of an occupational pension scheme by a court order.

2.7

A notification under 2.6 must include details of the matter and an estimate of the likely financial consequences, if any.

2.8

1. (1) A firm must notify the PRA immediately if one of the following events arises and the event is significant:
 1. (a) it becomes aware that an employee may have committed a fraud against one of its customers;
 2. (b) it becomes aware that a person , whether or not employed by it, may have committed a fraud against it;
 3. (c) it considers that any person , whether or not employed by it, is acting with intent to commit a fraud against it;
 4. (d) it identifies irregularities in its accounting or other records, whether or not there is evidence of fraud; or
 5. (e) it suspects that one of its employees may be guilty of serious misconduct concerning their honesty or integrity and which is connected with the firm's regulated activities or ancillary activities.
2. (2) A notification under (1) must provide all relevant and significant details of the incident or suspected incident of which the firm is aware.

2.9

A firm must notify the PRA immediately of any of the following events:

1. (1) the calling of a meeting to consider a resolution for winding up the firm ;
2. (2) an application to dissolve the firm or to strike it off the Register of Companies;
3. (3) the presentation of a petition for the winding up of the firm ;
4. (4) the making of, or any proposals for the making of, a composition or arrangement with any one or more of its creditors;

5. (5) an application for the appointment of an administrator or trustee in bankruptcy to the _firm_ ;
6. (6) the appointment of a receiver to the _firm_ (whether an administrative receiver or a receiver appointed over particular property);
7. (7) an application for an interim order against the _firm_ under section 252 of the Insolvency Act 1986 (or, in Northern Ireland, section 227 of the Insolvency (Northern Ireland) Order 1989);
8. (8) if the _firm_ is a _sole trader_ :
 1. (a) an application for a sequestration order on the _firm_ ; or
 2. (b) the presentation of a petition for bankruptcy; or
9. (9) anything equivalent to (1) to (8) above occurring in respect of the _firm_ in a jurisdiction outside the _UK_.

3

Lloyd's of London

3.1

The _PRA_ directs that:

1. (1) the _Society_ must immediately inform the _PRA_ in writing if it becomes aware that any matter likely to be of material concern to the _PRA_ may have arisen in relation to:
 1. (a) the _regulated activities_ for which the _Society_ has _permission_ ; or
 2. (b) _managing agents_ ; or
 3. (c) _approved persons_ or individuals acting for or on behalf of _managing agents_.
2. (2) the _Society_ must inform the _PRA_ if it commences investigations or disciplinary proceedings relating to apparent breaches:
 1. (a) of _FSMA_ or requirements made or imposed under _FSMA_ , including the _threshold conditions_ or any _rules_ , by a _managing agent_ ; or
 2. (b) of the _Statements of Principle_ by an individual or other _person_ who carries out _controlled functions_ for or on behalf of a _managing agent_.
3. (3) that the _Society_ must inform the _PRA_ if it commences investigations or disciplinary proceedings which do not fall within the scope of (2) but which:
 1. (a) involve a _managing agent_ , or an _approved person_ who carries out _controlled functions_ for it or on its behalf; or
 2. (b) may indicate that an individual acting for or on behalf of a _managing agent_ may not be a fit and proper person to perform functions in relation to _regulated activities_ ,

and in each case the direction is given in relation to the exercise of the powers of the _Society_ and of the _Council_ generally, with a view to achieving the objective of enabling the _PRA_ to (1) comply with its general duty under section 314 of _FSMA_ ; (2) determine whether _managing agents_ or _approved persons_ acting for them or on their behalf, are complying with the requirements imposed on them by or under _FSMA_ and (3) enforce the provisions of _FSMA_ , or requirements made under _FSMA_ , by enabling the _PRA_ to consider, where appropriate, whether it should use its powers, for example to:

1. (i) vary or cancel the _permission_ of a _managing agent_ , under section 55J of _FSMA_ (Variation or cancellation on initiative of regulator);
2. (ii) withdraw approval from an _approved person_ acting for or on behalf of a _managing agent_ , under section 63 of _FSMA_ (Withdrawal of approval);
3. (iii) prohibit an individual, acting for or on behalf of a _managing agent_ , from involvement in _regulated activities_ , under section 56 of _FSMA_ (Prohibition orders);

4. (iv) require a _managing agent_ to make restitution, under section 384 of _FSMA_ (Power of [FCA or PRA] to require restitution);
5. (v) discipline a _managing agent_, or an _approved person_ acting for it or on its behalf, for a breach of a requirement made under _FSMA_, including the _Fundamental Rules_, _Statements of Principle_ and _rules_;
6. (vi) apply to court for an _injunction_, restitution order or _insolvency order_; and
7. (vii) prosecute any criminal offence that the _PRA_ has power to prosecute under _FSMA_.

3.2

Each direction in SUP 15.3.22D to SUP 15.3.25D of the _PRA Handbook_ continues to have effect from the date the relevant direction was given to the date on which the direction in 3.1 has effect.

4

Notified Persons

4.1

1. (1) An _overseas firm_ must notify the _PRA_ within 30 _business days_ of any _person_ taking up or ceasing to hold the following positions:
 1. (a) the _firm's_ worldwide chief executive (that is, the _person_ who, alone or jointly with one or more others, is responsible under the immediate authority of the _directors_ for the whole of its business) if the _person_ is based outside the _UK_;
 2. (b) the _person_ within the _overseas firm_ with a purely strategic responsibility for _UK_ operations;
 3. (c) for a _bank_: the two or more _persons_ who effectively direct its business; or
 4. (d) for an _insurer_: the _authorised UK representative_.
2. (2) The notification in (1) must include, as a minimum, the _person's_ name, the position to which the notification relates and, if the _person_ is an approved person, the _approved person's_ individual reference number.

[Note: 4.1 is not made under the powers conferred on the PRA by Part V of FSMA (Performance of Regulated Activities). A person notified to the PRA under 4.1 is not subject to the Statements of Principle or Code of Practice for Approved Persons, unless they are also an approved person.]

4.2

[deleted]

5

Core Information Requirements

5.1

A _firm_ must give the _PRA_ reasonable advance notice of a change in any of the following names, and give details of the new name and the date of the change:

1. (1) the _firm's_ name (which is the registered name if the _firm_ is a _body corporate_); and
2. (2) any business name under which the _firm_ carries on a _regulated activity_ or _ancillary activity_ either from an establishment in the _UK_ or with or for clients in the _UK_,

in each case by submitting the form referred to in 10.2 (Standing Data Form).

5.2

A firm must give the PRA reasonable advance notice of a change in any of the following addresses, and give details of the new address and the date of the change:

1. (1) the firm's principal place of business in the UK ; and
2. (2) in the case of an overseas firm , its registered office (or head office) address,

in each case by submitting the form referred to in 10.2 (Standing Data Form).

5.3

A firm must give the PRA reasonable advance notice of a change in any of the following telephone numbers, and give details of the new telephone number and the date of the change:

1. (1) the number of the firm's principal place of business in the UK ; and
2. (2) in the case of an overseas firm , the number of its head office,

in each case by submitting the form referred to in 10.2 (Standing Data Form).

5.3A

A firm must, within 30 business days of its accounting reference date , check the accuracy of its standing data through the ONA system. If any standing data is incorrect, the firm must correct the standing data by submitting the form referred to in 10.2 (Standing Data Form).

5.4

A firm must notify the PRA immediately if it becomes subject to or ceases to be subject to the supervision of any overseas regulator.

5.5

1. (1) A firm other than a credit union must submit the forms required in 5.1 to 5.3A online using the ONA system.
2. (2) Where a firm is obliged to submit a notice online under (1), if the ONA system fails and online submission is unavailable for 24 hours or more, until such time as facilities for online submission are restored:
 1. (a) a firm must submit any notice required by 5.1 to 5.3 in the way set out in 7.4 to 7.6;
 2. (aa) a firm must submit any notice required by 5.3A to or via post or hand delivery to the FCA marked for the attention of the ?Static Data team?; and
 3. (b) the rules in relation to non-compliance with rules by a firm in the case of an emergency do not apply.
3. (3) A credit union must submit corrected standing data to or via post or hand delivery to the FCA marked for the attention of the ?Static Data Team?.

6

Inaccurate, False or Misleading Information

6.1

A firm must take reasonable steps to ensure that all information it gives to the PRA in accordance with a rule is:

1. (1) factually accurate or, in the case of estimates and judgments, fairly and properly based after appropriate enquiries have been made by the firm ; and
2. (2) complete, in that it should include anything of which the PRA would reasonably expect notice.

6.2

If a _firm_ is unable to obtain the information required in 6.1, then it must inform the _PRA_ that the scope of the information provided is, or may be, limited.

6.3

If a _firm_ becomes aware, or has information that reasonably suggests that it has or may have provided the _PRA_ with information which was or may have been false, misleading, incomplete or inaccurate, or has or may have changed in a material particular, it must notify the _PRA_ immediately. Subject to 6.4, the notification must include:

1. (1) details of the information which is or may be false, misleading, incomplete or inaccurate, or has or may have changed;
2. (2) an explanation why such information was or may have been provided; and
3. (3) the correct information.

6.4

If the information in 6.3(3) cannot be submitted with the notification (because it is not immediately available), it must instead be submitted as soon as possible afterwards.

7

Form and Method of Notification

7.1

A notification required from a _firm_ under any _notification rule_ must be given in writing, and in English, and must be submitted on the form specified for that _notification rule_ , or if no form is specified, on the form referred to in 10.3 (Notification form), and must give the _firm's_ Firm Reference Number unless:

1. (1) the _notification rule_ states otherwise; or
2. (2) the notification is provided solely in compliance with 2.3 or Fundamental Rule 7.

7.2

A _firm_ must provide a written notification following an oral notification if:

1. (1) the _PRA_ requests written confirmation of a _firm's_ oral notification; or
2. (2) a matter either is complex or may be such as to make it necessary for the _PRA_ to take action.

7.3

In giving notice to the PRA:

1. (1) a _firm_ must ensure that matters are promptly, properly and clearly communicated to the _PRA_ ; and
2. (2) a _firm_ must discuss relevant matters with the _PRA_ at an early stage, before making any internal or external commitments.

7.4

Unless stated in the _notification rule_ , or on the relevant form (if specified), a written notification required from a _firm_ under any _notification rule_ must be:

1. (1) given to or addressed for the attention of the _firm's_ usual supervisory contact at the _PRA_ ; and

2. (2) delivered to the _PRA_ by one of the following methods:

1. (a) post to the _PRA's_ address;
2. (b) leaving the notification at the _PRA's_ address and obtaining a time-stamped receipt;
3. (c) electronic mail to an address for the _firm's_ usual supervisory contact at the _PRA_ and obtaining an electronic confirmation of receipt;
4. (d) hand delivery to the _firm's_ usual supervisory contact at the _PRA_ ;
5. (e) fax to a fax number for the _firm's_ usual supervisory contact at the _PRA_ and receiving a successful transmission report for all pages of the notification;
6. (f) online submission via the _PRA's_ website at www.bankofengland.co.uk/pr/.

[Note: The current published address of the PRA for postal submission or hand delivery of notifications is 20 Moorgate, London EC2R 6DA.]

7.5

If the _firm_ or its _group_ is subject to lead supervision arrangements by the _PRA_ , the _firm_ or _group_ may give or address a notice under 7.4(1) to the supervisory contact at the _regulator_ designated as lead supervisor, if the _firm_ has chosen to make use of the lead supervisor as a central point of contact.

7.6

If a _firm_ is a member of a _group_ which includes more than one _firm_ , any one _undertaking_ in the _group_ may notify the _PRA_ on behalf of all _firms_ in the _group_ to which the notification applies. In this way, that _undertaking_ may satisfy the obligation of all relevant _firms_ in the group to notify the _PRA_. Nevertheless, the obligation to make the notification remains the responsibility of the individual _firm_ itself.

7.7

If a _notification rule_ requires notification within a specified period:

1. (1) the _firm_ must give the notification so as to be received by the _PRA_ no later than the end of that period; and
2. (2) if the end of that period falls on a day which is not a _business day_ , the notification must be given so as to be received by the _PRA_ no later than the first _business day_ after the end of that period.

8

Specific Notifications

8.0

This Chapter applies to a _BRRD undertaking_.

8.1

A _CRR firm_ must report to the _PRA_ immediately any case in which its counterparty in a _repurchase transaction_ or securities or commodities lending or borrowing transaction defaults on its obligations.

8.2

A _BRRD undertaking_ , which is a _CRR firm_ , a _financial holding company_ , a _mixed financial holding company_ or a _mixed activity holding company_ must notify the _PRA_ immediately if its _BRRD management body_ considers that:

1. (1) the assets of the _BRRD undertaking_ are or there are objective elements to support a determination that the

assets of the _BRRD undertaking_ will, in the near future, be less than its liabilities;

2. (2) the _BRRD undertaking_ is or there are objective elements to support a determination that the _BRRD undertaking_ will, in the near future, be unable to pay its debts or other liabilities as they fall due; or

3. (3) _extraordinary public financial support_ is required for the _BRRD undertaking_ or the _group_ of which the _BRRD undertaking_ forms part.

8.3

A _BRRD undertaking_ , which is a _CRR firm_ , must notify the _PRA_ immediately if its _management body_ considers that the _firm_ is failing or there are objective elements to support a determination that the _firm_ will, in the near future, fail to satisfy one or more of the _threshold conditions_ , including as a result of the _firm_ having incurred or being likely to incur losses that will deplete all or a significant amount of its _own funds_.

[Note: Art.81(1) of the _BRRD_]

8.4

A notification required from a _BRRD undertaking_ under 8.2 or 8.3 must be delivered to the _PRA_ by the method of electronic mail to an address for the usual supervisory contact at the _PRA_ for the _BRRD undertaking_ or its _group_.

9

Financial Conglomerate Notifications

9.1

A _firm_ that is a _regulated entity_ must notify the _PRA_ immediately it becomes aware, such notification to include a detailed explanation in support of the firm's assessment, that any _consolidation group_ of which it is a member:

1. (1) is a _financial conglomerate_ ; or
2. (2) has ceased to be a _financial conglomerate_.

9.2

1. (1) A _firm_ that is a _regulated entity_ must establish whether or not any consolidation group of which it is a member:

1. (a) is a _financial conglomerate_ ; or
2. (b) has ceased to be a _financial conglomerate_ ,

3. if:

4. (c) the _firm_ believes; or

5. (d) a reasonable firm that is complying with the requirements of the _regulatory system_ would believe,

6. that it is likely that (a) or (b) is true.

2. (2) A _firm_ does not need to determine whether (1)(a) is the case if the _consolidation group_ is already being regulated as a _financial conglomerate_.

3. (3) A _firm_ does not need to determine whether (1)(b) is the case if notification has already been given as contemplated by 9.4.

9.3

A _firm_ must consider the requirements in 9.2 on a continuing basis, and in particular, when the _group_ prepares its financial statements and on the occurrence of an event affecting the _consolidation group_. Such events include, but are not limited to, an acquisition, merger or sale.

9.4

A _firm_ does not have to give notice to the _PRA_ under 9.1 if it or another member of the _consolidation group_ has already given notice of the relevant fact to:

1. (1) the _PRA_ ; or
2. (2) (if another _competent authority_ is _coordinator_ of the _financial conglomerate_) that _competent authority_ ; or
3. (3) (in the case of a _financial conglomerate_ that does not yet have a _coordinator_) the _competent authority_ who would be _coordinator_ under Article 10(2) of the _Financial Groups Directive_ (Competent authority responsible for exercising supplementary supervision (the coordinator)).

9.5

1. (1) A _firm_ must, at the level of the _UK financial conglomerate_ , regularly provide the _PRA_ with details on the _UK financial conglomerate's_ legal structure and governance and organisational structure, including all _regulated entities_ and non-regulated subsidiaries.
2. (2) A _firm_ must disclose publicly, at the level of the _UK financial conglomerate_ , on an annual basis, either in full or by way of references to equivalent information, a description of the _UK financial conglomerate's_ legal structure and governance and organisational structure.
3. (3) For the purposes of (1) and (2), where a _firm_ is a member of a _UK financial conglomerate_ which is part of a wider _financial conglomerate_ , reporting applies only at the level of the _UK parent mixed financial holding company_ or _ultimate UK mixed financial holding company_.

10

Forms

10.1

[deleted]

10.2

The Standing Data Form can be found here.

10.3

The Notification Form can be found here.

11

Conduct Rules: Notifications

11.1

This Chapter applies to every _firm_ that is:

1. (a) a _CRR firm_ ;
2. (b) a _credit union_ ; or
3. (c) a _third country CRR firm_ in relation to the activities of its establishment in the UK;
4. (d) a _UK Solvency II firm_ ;
5. (e) in accordance with Insurance General Application 3, the _Society_ , as modified by 14;
6. (f) in accordance with Insurance General Application 3, _managing agents_ , as modified by 14;

7. (g) a _third country branch undertaking_ ;
8. (h) a _UK ISPV_ ; and
9. (i) a _non-directive insurer_.

11.2

If a _firm_ takes _disciplinary action_ against a _person_ relating to any action, failure to act, or circumstance that amounts to a breach of any conduct rule it must notify the _PRA_.

11.3

If a _firm_ is required to notify the _PRA_ under 11.2 in respect of either:

1. (1) _persons_ performing _certification functions_ ; or
2. (2) _Conduct Rules non-executive directors_ ,

it must do so within seven business days of the point at which it determined the relevant requirement applied, by submitting Form L. A _firm_ must not unreasonably delay its determination of whether or not the requirement applies.

11.4

If a _firm_ is required to notify the _PRA_ under 11.2 in respect of a _person_ performing a _PRA senior management function_ , it must do so within seven business days of the point at which it determined the relevant requirement applied, by submitting:

1. (1) if the _firm_ is of a type in 11.1(a), (b) or (c) and the circumstances set out in Senior Managers Regime ? Applications and Notifications 5.2 apply, Form C;
2. (2) if the _firm_ is of a type in 11.1(d), 11.1(e), 11.1(f), 11.1(g) or 11.1(h) (other than a _Swiss general insurer_) and the circumstances set out in Solvency II Firms - Senior Managers Regime ? Applications and Notifications 4.2(2) apply, Form C;
3. (3) the _firm_ is a _large non-directive insurer_ or a _Swiss general insurer_ and the circumstances set out in Large Non-Solvency II Firms - Senior Managers Regime ? Applications and Notifications 4.2(2) apply, Form C;
4. (4) if the _firm_ is a _small non-directive insurer_ and the circumstances set out in Non-Solvency II Firms - Senior Managers Regime ? Applications and Notifications 4.2(2) apply, Form C;
5. (5) and in all other cases, Form D.

A _firm_ must not unreasonably delay its determination of whether or not the requirement applies.

11.5

If a _firm_ becomes aware of information which would reasonably be material to the assessment of the fitness and propriety of a _PRA approved person_ , or a _person_ in respect of whom an application for approval to perform a _PRA senior management function_ has been made, it must inform the _PRA_ on Form D, or (if it is more practical to do so and with the prior agreement of the _PRA_) by fax or e-mail, as soon as practicable.

11.6

A _firm_ other than a _credit union_ must submit:

1. (1) Form C and Form D using the _ONA system_ ; and
2. (2) Form L using the PRA email address specified in Form L.

11.7

A _credit union_ must submit:

1. (1) Form C and Form D using the _ONA system_ or in the manner set out in Notifications 7;
2. (2) Form L using the _PRA_ email address specified in Form L.

11.8

If, under any rule in this Chapter:

1. (1) a _firm_ is required to make a notification; and
2. (2) the information technology systems used by the _PRA_ fail and online submission is unavailable for 24 hours or more,

until such time as facilities for online submission are restored a _firm_ must submit the specified form in the way set out in Notifications 7.

11.9

1. (1) Form C may be found here.
2. (2) Form D may be found here.
3. (3) Form L may be found here.

12

Ring-Fencing Notifications

12.1

This Chapter applies to _UK banks_ that do not carry out _insurance business_ acting as principal in accordance with a _Part 4A permission_.

12.2

A _firm_ must notify the _PRA_ within 30 days after it becomes aware, or has information which reasonably suggests, that any of the following has occurred:

1. (1) if the _firm_ is not in a _group_ , its total _core deposits_ :
 1. (a) have increased over £25 billion; or
 2. (b) have decreased to less than or equal to £25 billion,
2. (2) if the _firm_ is in a _group_ , the sum of _core deposits_ of all _relevant group members_ :
 1. (a) has increased over £25 billion; or
 2. (b) has decreased to less than or equal to £25 billion.

12.3

A _firm_ must notify the _PRA_ promptly, but in any event within 30 days, if it reasonably expects or has information that reasonably suggests that it will cease to meet or that it will start to meet the _core deposit level condition_ within the next three years.

12.4

A _ring-fenced body_ must notify the _PRA_ within 30 days after acquiring shares under an exception in Article 6(4)(e) of the _Excluded Activities and Prohibitions Order_ or after disposing of shares held under one of those exceptions.

12.5

A _ring-fenced body_ must notify the _PRA_ within 30 days after using the exception provided for in Article 6(4)(f) of the _Excluded Activities and Prohibitions Order_.

12.6

The notification in 12.5 must specify the product type and the value of any relevant investments.

12.7

A _ring-fenced body_ must notify the _PRA_ within 30 days after the date on which it becomes aware that an _exposure_ is a _financial institution exposure_ which would be prohibited but for the exception provided for in Article 19B of the _Excluded Activities and Prohibitions Order_.

12.8

The notification in 12.7 must specify:

1. (a) the date on which the _exposure_ became a _financial institution exposure_ ; and
2. (b) the value of the _financial institution exposure_.

12.9

A _ring-fenced body_ must notify the _PRA_ within 30 days after closing a _financial institution exposure_ which would be prohibited but for the exception provided for in Article 19B of the _Excluded Activities and Prohibitions Order_.

13

Structured Deposits Notification

13.1

[deleted]

14

Lloyd's

14.1

This Part applies to the _Society_ and _managing agents_ separately.